UNITED STATES DISTRICT COURT
NORTHERN DISTRICT OF CALIFORNIA

REQUEST FOR ISSUANCE OF AMENDED SUMMONS

Brendan Ngehsi Newanforbi v. Shannon Smith, LCSW, et al.
Case No. 3:26-cv-07504-LJC Hon. Lisa J. Cisneros

Plaintiff, appearing In Propria Persona, respectfully requests that the Clerk issue Amended Summonses in this action under Fed. R. Civ. P. 4(b).

Background

1. On July 20, 2026, Plaintiff filed a Proposed Summons (Dkt. 3). The filed Proposed Summons does not bear a Date or Signature of the Clerk or Deputy Clerk and therefore has not been issued.
2. Plaintiff paid the filing fee (Dkt. 8). On August 26, 2026, the Court denied the IFP application as moot and directed Plaintiff to serve process consistent with Rule 4 (Dkt. 11).
3. The enclosed Amended Summonses (one for each named defendant) (a) state the assigned case number, (b) identify each defendant with a complete service address (1245 B Street, Hayward, CA 94541), and (c) leave the Date and Deputy Clerk signature lines blank for issuance.

Request

Please sign, seal, and issue the enclosed Amended Summons as to (1) Shannon Smith, LCSW, and (2) HOPE Psychotherapy, Inc. d/b/a HOPE Program, so Plaintiff may effect Rule 4 service as directed in Dkt. 11.

Respectfully submitted,

_____

Brendan Ngehsi Newanforbi
Plaintiff In Propria Persona
1455 Cat Tail Drive
Stockton, CA 95204
Tel: (209) 801-4442
Email: bnn.cdl@gmail.com

Dated: August 31, 2026

Enclosures (for clerk stamping — please return issued originals to Plaintiff):

1. Amended Summons — Shannon Smith, LCSW (AO 440)
2. Amended Summons — HOPE Psychotherapy, Inc. (AO 440)

AO 440 (Rev. 06/12) Summons in a Civil Action

UNITED STATES DISTRICT COURT

for the

_____ District of _____

_____
Plaintiff(s)

v.

_____
Defendant(s)

Civil Action No.

SUMMONS IN A CIVIL ACTION

To: *(Defendant's name and address)*

A lawsuit has been filed against you.

Within 21 days after service of this summons on you (not counting the day you received it) — or 60 days if you are the United States or a United States agency, or an officer or employee of the United States described in Fed. R. Civ. P. 12 (a)(2) or (3) — you must serve on the plaintiff an answer to the attached complaint or a motion under Rule 12 of the Federal Rules of Civil Procedure. The answer or motion must be served on the plaintiff or plaintiff's attorney, whose name and address are:

If you fail to respond, judgment by default will be entered against you for the relief demanded in the complaint. You also must file your answer or motion with the court.

CLERK OF COURT

Date: _____

_____
Signature of Clerk or Deputy Clerk

FOR CLERK ISSUANCE ? leave Date and Deputy Clerk signature blank for court stamp/signature

Civil Action No.

PROOF OF SERVICE

(This section should not be filed with the court unless required by Fed. R. Civ. P. 4 (l))

This summons for *(name of individual and title, if any)* _____ was received by me on *(date)* _____ .

❒ I personally served the summons on the individual at *(place)* _____ on *(date)* _____ ; or

❒ I left the summons at the individual's residence or usual place of abode with *(name)* _____ , a person of suitable age and discretion who resides there, on *(date)* _____ , and mailed a copy to the individual's last known address; or

❒ I served the summons on *(name of individual)* _____ , who is designated by law to accept service of process on behalf of *(name of organization)* _____ on *(date)* _____ ; or

❒ I returned the summons unexecuted because _____ ; or

❒ Other *(specify):*

.

My fees are $ _____ for travel and $ _____ for services, for a total of $ _____ .

I declare under penalty of perjury that this information is true.

Date: _____

_____
Server's signature

_____
Printed name and title

_____
Server's address

Additional information regarding attempted service, etc:

AO 440 (Rev. 06/12) Summons in a Civil Action

UNITED STATES DISTRICT COURT

for the

_____ District of _____

_____
Plaintiff(s)

v.

_____
Defendant(s)

Civil Action No.

SUMMONS IN A CIVIL ACTION

To: *(Defendant's name and address)*

A lawsuit has been filed against you.

Within 21 days after service of this summons on you (not counting the day you received it) — or 60 days if you are the United States or a United States agency, or an officer or employee of the United States described in Fed. R. Civ. P. 12 (a)(2) or (3) — you must serve on the plaintiff an answer to the attached complaint or a motion under Rule 12 of the Federal Rules of Civil Procedure. The answer or motion must be served on the plaintiff or plaintiff's attorney, whose name and address are:

If you fail to respond, judgment by default will be entered against you for the relief demanded in the complaint. You also must file your answer or motion with the court.

CLERK OF COURT

Date: _____

_____
Signature of Clerk or Deputy Clerk

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❒ I served the summons on *(name of individual)* _____ , who is designated by law to accept service of process on behalf of *(name of organization)* _____ on *(date)* _____ ; or

❒ I returned the summons unexecuted because _____ ; or

❒ Other *(specify):*

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Server's signature

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Printed name and title

_____
Server's address

Additional information regarding attempted service, etc: